

**STATE OF NEW YORK
SUPREME COURT: COUNTY OF BRONX**

-----X INDEX NO.

EBRIMA MARIA,

Plaintiff,

vs.

SUMMONS

CITY OF NEW YORK, DET. ALLEN,
PO SAMANTHA GILL, PO JOHN DOE I
and JOHN DOE II, in their individual and
official capacities.

Defendants.

-----X DEMAND FOR TRIAL BY JURY

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to appear in this action by serving a Notice of Appearance on plaintiff's attorneys within 20 days after service of this Summons, exclusive of the day of service, or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

The basis of venue is plaintiff's residence. Plaintiff resides 1666 Parker Street, Apt. 1A, Bronx, NY 10462.

Dated: Bronx, New York

May 19, 2021



Bryan J. Hutchinson, Esq.

Attorney for Plaintiff

Law Office Of

Bryan J. Hutchinson, PLLC

1443 E. Gun Hill Rd, Ste. 2

Bronx, New York 10469

Tel: (718) 671-0900

To Defendants:

James E. Johnson, Esq.

Corporation Counsel of the City of New York

New York City Law Department

100 Church Street

New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X INDEX NO.

EBRIMA MARIA,**Plaintiff,**

-against-

VERIFIED COMPLAINT**CITY OF NEW YORK, DET. ALLEN,
PO SAMANTHA GILL, PO JOHN DOE I
and JOHN DOE II, in their individual and
official capacities.****Defendants.**

-----X

Plaintiff, **Ebrima Maria**, as and for his complaint, respectfully alleges as follows:

1. At all times herein mentioned, plaintiff, Ebrima Maria was a resident of the County of Bronx, City and State of New York.
2. At all times herein mentioned, defendant Det. Allen, a male Caucasian was a police Officer employed by defendant City of New York Police Department.
3. At all times herein mentioned, defendant PO Samantha Gill (Shield 5636), a female Caucasian was a Police Officer employed by defendant City of New York Police Department.
4. At all times herein mentioned, defendant PO John Doe I, a male Caucasian was a Police Officer employed by defendant City of New York Police Department.
5. At all times herein mentioned, defendant the City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York.
6. At all times herein mentioned, defendant the City of New York maintained and was responsible for overseeing, supervising and regulating all conduct engaged in and undertaken by the City of New York Police Department.
7. At all times herein mentioned, defendant the City of New York maintained and was responsible for overseeing, supervising and regulating all conduct engaged in by the City of New York Police personnel

while such personnel were engaged in police business, including that of defendants Det. Allen, PO Samantha Gill and PO John Doe I.

8. Annexed hereto as Exhibit A is a Notice of Claim served on defendants City of New York, Det. Allen, PO Samantha Gill and PO John Doe I on August 4, 2020.

9. Defendant, the City of New York, has neglected and refused to make an adjustment in payment thereof within more than 30 days after service of the Notice of Claim. Thirty days have elapsed since such service of the notices of claim and payment thereof has been rejected or refused.

FACTUAL ALLEGATIONS

10. That on or about February 4, 2017, at approximately 1:00 AM while the plaintiff Ebrima Maria was lawfully and rightfully in the 48th Street Deli as bodega store located at 48th Street and 7th Avenue, New York, New York, the Plaintiff was caused to sustain injuries by Det. Allen, PO Samantha Gill and PO John Doe I, when he was assaulted, battered and handcuffed, forcibly searched, illegally detained and unlawfully arrested, maliciously prosecuted at which time and place, police officers, and/or agents, servants and/or employees of The City of New York and the New York City Police Department, without probable cause, justification or provocation, arrested, detained and assaulted and battered said claimant and detained him. The New York City Police Department was negligent in the hiring, training and retention of its officers which were involved in the within occurrence.

11. That the plaintiff Ebrima Maria was unlawfully arrested and detained about February 4, 2017.

12. Defendants Det. Allen, PO Samantha Gill and PO John Doe I were on duty and working as a police officers employed by defendant City of New York Police Department at the time of the aforementioned false arrest, assault and battery upon the plaintiff.

13. On or about February 4, 2017, at approximately 1:00 A.M. while the plaintiff was lawfully present in the 48th Street Deli bodega store at 48th Street and 7th Avenue, New York, New York, three New York City police officers, namely by Det. Allen, PO Samantha Gill and PO John Doe I without cause of

justification started threw the plaintiff on the floor inside the bathroom and illegally seized and searched the plaintiff.

14. Ebrima Maria was initially falsely accused of Criminal Sale of a Controlled Substance (PL 220.39(1)), Criminal sale of Marijuana in the Fourth Degree (PL 221.4) and Unlawful Possession of Marijuana (PL221.05). Upon information and belief, the claimant was placed in handcuffs around 1:30 AM in the morning. Upon information and belief, Ebrima Maria was brought to the 9th Police Precinct around 5:30 AM. On or about 9:30 AM the Ebrima Maria was brought to central booking and remained there until approximately 12:30 AM on February 5, 2017. The case was subsequently dismissed on or about December 19, 2019.

15. This is a civil rights action in which the Plaintiff Ebrima Maris seeks relief for the defendants' violation of his rights secured by the Civil Rights Act of 1866 and 1871, 42 U.S.C. §§1981 and 1983 and of the rights secured by the United States Constitution, Amendments Four and Fourteen and for the rights secured under the Constitution of the State of New York, Article I, Sections 11 and 12 and the common law of the State of New York.

16. Plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of attorneys' fees and costs and such other relief as this Court deems equitable and just.

NOTICE OF CLAIM

17. That on or about August 4, 2020, a Notice of Claim, was served upon the Comptroller of the City of New York. The case has been assigned claim number 2020PI19632 by the City of New York, Office of the Comptroller, Claims and Adjudication.

18. The 50-H hearing of Plaintiff Ebrima Maria was conducted on January 8, 2021. More than thirty days have elapsed since the Notice of Claim has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

19. That this action is commenced within one year and ninety days after the causes of action arose and

other causes of action within three (3) years when said action arose.

AS AND FOR A FIRST CAUSE OF ACTION
(42 USC § 1983 And The Use of Excessive And Unreasonable Force)

20. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

21. That the plaintiff's rights have been violated under the Fourth and Eighth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that plaintiff was unlawfully subjected to excessive and unreasonable force by defendants and unidentified police officers, who either intentionally, recklessly or negligently assaulted and battered plaintiff by throwing him to the ground and placing their knees on his back. The defendants placed a very tight hand cuff on plaintiff's hands.

22. That the said assault and battery of the plaintiff Ebrima Maria was affected by defendants and on unidentified police officer without authority of law and without any reasonable necessity to use any force much less the excessive force that they employed and the force employed was used without legal justification, without plaintiffs' consent, with malice and with an intent to inflict pain and suffering.

23. As a direct result of defendants and one unidentified police officers actions, plaintiff was deprived of rights, privileges and immunities under the Fourth Amendment of the United States Constitution being more particularly plaintiff's rights to be free from the use of excessive and unreasonable force.

24. That all the defendants and unidentified police officers who witnessed the use of excessive force against the plaintiff and who had a reasonable opportunity to intervene and prevent him being injured and who failed to do so are liable to the plaintiff via their failure to exercise their affirmative duty to intervene.

25. That by reason of the unlawful use of excessive and unreasonable force, the plaintiff was harmed physically, by the very tight hand cuffs humiliation, embarrassment, anxiety, and closed confinement.

AS AND FOR A SECOND CAUSE OF ACTION
(Liability of Defendant City for Constitutional Violations – Monell Claim)

26. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

27. At all times materials to this complaint, the defendant City of New York, acting through its police department, the New York City Police Department, had in effect de facto policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct of the defendant police officers.

28. The aforementioned customs policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included but not limited to assault and battering persons with justification thereto, and thereafter concealing same to superiors, I.A.B. and CCRB. ^{1 space}

29. The defendant City of New York, failed to effectively screen, hire, train, supervise and discipline its police officers and employees, including the defendant police officers and unidentified officer(s) herein, for their refusal to report assault and battery of a person by fellow officers, where there was no justification thereof.

30. The existence of such de facto policies and/or well-settled and widespread customs and practices has been known to supervisory and police-making officers and officials of the Police Department and the City of New York for a substantial period of time.

31. Despite knowledge of such illegal de facto policies and practices, the supervisory and policy-making officers and officials of the Police Department and the City of New York have not taken adequate steps to terminate these policies and practices, have not disciplined individuals who engage in such practices, or otherwise properly trained police officers with regard to the constitutional and statutory limits on the exercise of their authority, and have instead sanctioned and ratified these policies, customs and practices through their deliberate indifference to or negligent disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

practices upon the constitutional rights of persons in the City of New York.

32. Defendant City of New York as well as unidentified police officers who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly train, discipline, sanction and retrain police officers, despite their knowledge of the recurring problem of violations of the Constitutional rights of citizens by seizing persons, assaulting persons by the use of excessive and unlawful force, and thereafter falsifying official records etc, and in so failing, the defendant City of New York has caused, encouraged, condoned and allowed the defendants in this case to engage in the aforementioned unlawful conduct without fear of consequences for their illegal acts which did cause the plaintiff to be subjected to deprivations of his civil rights.

33. That the defendant municipality, City of New York, alerted to the existence of a significant number of illegal seizures and arrests, by its police officers, by repeated complaints, of false arrest, and the use of excessive and unlawful force, exhibited deliberate indifference thereto in that it was obvious to the City of new York that there was a need for more and/or improved supervision of police officers in order to protect against constitutional violations and in spite or repeated complaints of civil rights violations, there have been no meaningful attempts on the part of City of New York to investigate or forestall further incidents.

34. That the defendant municipality, City of New York, has also been alerted by its employee officers to cover up the use of excessive and unlawful force by its police officers, and that the culture of violence by NYPD has been allowed to exist without repercussions to the officers who engaged in such behavior. This behavior was permitted to continue in the case at bar.

35. Moreover, the action of the individual defendants resulted from and were taken pursuant to a de facto policy and/or well-settled and widespread custom and practice of the City of New York, which is implemented by police officers of said City. Where the use of unlawful and excessive force is concealed by a conscious effort by all officers to conspire and thus conceal such conduct. Where the

frequently used by officers to conceal improper conduct by said officers. This is a well-established practice and custom of the defendant City of New York police department which has been the subject of a voluminous number of civil rights actions.

36. The existence of such de facto policies and/or well-settled and widespread custom and practices have been known to supervisory and police-making officers and officials of the Police Department of the City of New York for a substantial period.

37. Each year, thousands of civil rights actions alleging illegal seizure and false arrest and unlawful imprisonment and the use of excessive and unlawful force by police officers are brought and “settled” by the defendant City of New York. Each year, the defendant, City of New York spends millions of dollars to settle and/or satisfy said actions. These matters contained allegations of false arrest, unlawful and excessive force and unlawful imprisonment by the defendant City of New York police officers. Furthermore, these facts alone substantiate the fact that not only is the defendant City of New York aware of said police practices and usages, but more so, that defendant City of New York has failed to stop said practices and has condoned said practices and usages.

38. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with regards to the duty to intervene and to report violations of civil right.

39. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with regards to falsifying police reports and providing misleading information to prosecutors.

40. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with the use of excessive and unlawful force.

41. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline supervising officers with regards to their review of charges and reports of matters involving injury to persons and of use of force and excessive force thereon.

42. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly instruct, and discipline police officers with regards to perjurious testimony and police reports.

43. Upon information and belief, and without limiting the foregoing, the City of New York has permitted police officers to maintain the “blue wall of silence” and to conceal and fail to report the misconduct of other police officers.

44. Upon information and belief, and without limiting the foregoing, the City of New York has structured procedures and standards at the Civilian Complaint Review Board, the Office of Chief of Department, and Internal Affairs in such a manner that an officer’s denial of the charges is ordinarily sufficient to remove the threat of any discipline or restraint upon the officer’s conduct and to prevent any objective review of the officer’s conduct.

45. Upon information and belief, and without limiting the foregoing, the City of New York has failed to require police officers to accept independent and objective review of civilian complaints and imposition of discipline.

46. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly structure the police department to review and discipline the existence of unlawful conspiracy by defendant officers.

47. Defendant City of New York is directly liable and responsible for the acts of defendants and unidentified officers because it has repeatedly and knowingly failed to properly supervise, train and discipline said officers and because it repeatedly and knowingly failed to enforce the rules and regulations of the New York City Police Department and the laws of the State of New York and the United States.

48. The knowing and repeated failures of the defendant City of New York to properly supervise, train and discipline said officers caused the injuries to plaintiff alleged herein.

49. Upon information and belief, defendant City of New York knew or should have known that the acts alleged herein would deprive plaintiff of his rights without due process of law, in violation of the First, Fourth, Fifth, Ninth, and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 8, 9, 11 and 12 of the Constitution of the State of New York, including, without limitation, such rights as plaintiffs' rights, right to be free from the use of excessive force, right to due process, and right to equal protection of the laws.

50. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant City of New York has permitted and allowed the employment and retention of individuals as police officers and employees whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unlawful and/or unreasonable behavior. Such policies, practices customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the plaintiff herein.

51. As a result of the foregoing, plaintiff sustained great emotional and physical injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
(NYS Constitutional Violations)

52. Plaintiff repeats, reiterates and incorporates by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

53. Defendants subjected plaintiff to the foregoing conspiracies, acts, and omissions to act without due process of law, thereby depriving plaintiff of rights, privileges and immunities secured by Article 1, §§ 1, 6, 8, 9, 11 and 12 of the New York State Constitution, including, without limitation, the following deprivations of his rights, privileges and immunities:

(a) plaintiff was deprived of his right to be free from the use of excessive or unreasonable force in the course of either a lawful or an unlawful seizure, in violation of § 12 of the Constitution of the State of New York; and

(b) plaintiff was deprived of his rights to liberty, without due process of law, in violation of § 6 of the Constitution of the State of New York.

54. As a result of the defendants' conduct, Krishaun Rogers, sustained great emotional and physical injury including mental suffering, humiliation, embarrassment, and was otherwise harmed, damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)

55. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

56. By the actions described above, Det. Allen, PO Samantha Gill and PO John Doe I, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotion distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

57. As a result of the foregoing, plaintiff sustained great emotional injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
(Negligence)

58. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

59. Defendants, by their conduct negligently failed to use due care in the performance of their duties in

that they failed to perform their duties as reasonable and prudent officers where the defendant(s) officers viciously assaulted and battered persons and other defendant officers recklessly and negligently ignored same.

60. Defendants, by their conduct negligently failed to use due care in the performance of their duties in that they failed to perform their duties as reasonable and prudent officers where given the facts herein no officer intervened to stop either the initial unlawful use of excessive force.

61. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they hired and retained incompetent and unfit police officers whom they knew, or should have known, possessed dangerous propensities as well as a propensity to conspire against innocent persons where said officers would conspire and falsely arrest persons or fail to report any person they have injured, in an effort to conceal their assaultive conduct and their unlawful use of force, and excessive unreasonable use of force.

62. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they failed to exercise care in instructing police officers, officials, supervisors, and civilian employees as to their department, behavior, and conduct, including (but not limited to) the obligation of police officers to intervene, as an affirmative duty to protect citizens threatened with deprivation of constitutional rights by other New York City police officers;

63. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they failed to establish meaningful procedures for disciplining officers and other personnel who have engaged in such acts of misconduct.

64. Defendant officers acting jointly and severally, negligently caused extreme emotional distress to plaintiff. The acts and conduct of the defendants were reasonably foreseeable and were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. All of these acts were performed without any negligence on the part of the plaintiff and were the proximate cause of his injuries.

66. As a result of the foregoing, plaintiff sustained great emotional and physical injuries.

AS AND FOR A SIXTH CAUSE OF ACTION
(Failure To Intervene)

67. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

69. Det. Allen, PO Samantha Gill and PO John Doe I each individual defendant officer had an affirmative duty to intervene on plaintiffs' behalf to prevent the violation of his constitutional rights.

70. The individual defendant officers failed to intervene on plaintiffs' behalf to prevent the violation of his constitutional rights despite having a realistic opportunity to do so.

71. As a result of the aforementioned conduct of the individual defendants and other unidentified officers, plaintiff's constitutional rights were violated and they were subjected to use of excessive force and other violations of his constitutional rights.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Assault And Battery by Det. Allen)

72. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

73. Det. Allen I while in the scope of his employment, maliciously, willfully and intentionally committed assault and battery upon the plaintiff with apparent ability and objective to cause imminent harm and offense bodily harm and subjected plaintiff to physical injury and harm and embarrassment and humiliation.

74. Det. Allen intentional willfully and maliciously battered plaintiff, when he, in a hostile and offensive manner struck plaintiff without his consent and with the intentions of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

75. The acts and conduct of Det. Allen other unidentified police officers were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

76. As a result of the foregoing, plaintiff sustained great emotional injuries, was subject to great humiliation, physically harmed and was otherwise harmed, damaged and injured.

AS AND FOR A EIGHT CAUSE OF ACTION
(Assault And Battery by PO Samantha Gill)

77. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

78. PO Samantha Gill while in the scope of her employment, maliciously, willfully and intentionally committed assault and battery upon the plaintiff with apparent ability and objective to cause imminent harm and offense bodily harm and subjected plaintiff to physical injury and harm and embarrassment and humiliation.

79. PO Samantha Gill intentional willfully and maliciously battered plaintiff, when they, in a hostile and offensive manner struck plaintiff without his consent and with the intentions of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

80. The acts and conduct of PO Samantha Gill and other unidentified police officers were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

81. As a result of the foregoing, plaintiff sustained great emotional injuries, was subject to great humiliation, physically harmed and was otherwise harmed, damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
(Assault And Battery by P.O. John Doe I)

82. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

83. PO JOHN DOE I while in the scope of his employment, maliciously, willfully and intentionally committed assault and battery upon the plaintiff with apparent ability and objective to cause imminent harm and offense bodily harm and subjected plaintiff to physical injury and harm and embarrassment and humiliation.

84. PO JOHN DOE I intentional willfully and maliciously battered plaintiffs, when they, in a hostile and offensive manner struck plaintiff without her consent and with the intentions of causing harmful and/or offensive bodily contact to the plaintiffs and caused such battery.

85. The acts and conduct of PO JOHN DOE I and other unidentified police officers were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

86. As a result of the foregoing, plaintiff sustained great emotional injuries, was subject to great humiliation, physically harmed and was otherwise harmed, damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
(NY State Law Negligent Hiring And Retention)

87. Plaintiffs repeats, reiterates and incorporates by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

88. Upon information and belief, defendant City of New York failed to use reasonable care in the hiring and retention of the aforesaid defendants who conducted and participated in the use of excessive force and other violations of plaintiff's civil rights.

89. Defendant City of New York knew, or should have known in the exercise of reasonable care, the propensities of the defendant officers and other unidentified officers, to engage in the wrongful conduct heretofore alleged in this Complaint.

AS AND FOR A TENTH CAUSE OF ACTION
(Negligent Training, Supervision and Entrustment)

90. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

91. Defendant City of New York was negligent in its screening and hiring of defendants Det. Allen, PO Samantha Gill and PO John Doe I.

92. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendants Det. Allen, PO Samantha Gill and PO John Doe I to engage in the improper conduct complained of.

93. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendants Det. Allen, PO Samantha Gill and PO John Doe I to engage in the improper conduct complained of.

94. Upon information and belief in allowing defendants Det. Allen, PO Samantha Gill and PO John Doe I to continue their employment as a City of New York Sanitation Department Police Officer, subsequent to numerous prior incidents similar to the incident complained of, and after having been placed on notice, either actual or constructive, of such prior similar incidents, defendant the City of New York ratified defendants Det. Allen, PO Samantha Gill and PO John Doe I misuse and abuse of their power and authority as a police officers employed by defendant City of New York.

95. Upon information defendant City of New York failed to provide adequate training to defendants Det. Allen, PO Samantha Gill and PO John Doe I.

96. Upon information and belief, defendants Det. Allen, PO Samantha Gill and PO John Doe I had numerous prior incidents similar to the incident complained of, and after having been placed on notice,

either actual or constructive, of such prior similar incidents, defendant the City of New York failed to provide adequate supervision of defendants Det. Allen, PO Samantha Gill and PO John Doe I.

97. Upon information defendant City of New York was on actual or constructive notice of defendants Det. Allen, PO Samantha Gill and PO John Doe I propensity for excessive force and violence and intentionally and recklessly retained them as police officers with the City of New York Police Department.

98. Upon information defendant City of New York was on actual or constructive notice of defendants Det. Allen, PO Samantha Gill and PO John Doe I propensity for excessive force and violence and intentionally and recklessly entrusted Det. Allen, PO Samantha Gill and PO John Doe I with a weapon as a police officer with the City of New York Police Department.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Malicious Prosecution)

99. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

100. The City of New York defendants, including defendants Det. Allen, PO Samantha Gill and PO John Doe I commenced or continued a criminal proceeding against the plaintiff.

101. The criminal proceedings against plaintiff terminated in favor of the accused, when each of the criminal charges against plaintiff was dismissed; there was no probable cause for the criminal proceeding; the City of New York, through the Police department including defendants Det. Allen, PO Samantha Gill and PO John Doe I, acted with actual malice.

102. The acts and conduct of defendants alleged in the forgoing paragraphs constitute malicious prosecution under the laws of the State of New York. This Court has pendent jurisdiction to hear and adjudicate such claims.

103. By reason of the tortious conduct of defendants, the plaintiff suffered great intimidation and fear, sustained great physical injury, conscious pain and suffering, mental and emotional injuries and were otherwise harmed, damaged and injured.

104. For all claims arising under New York State Law, defendants are jointly and severally liable to the plaintiff inasmuch as this action arises out of the exceptions set forth in § 1602, subdivisions 5, 7, and 11 of the Civil Practice Law and Rules.

WHEREFORE, the plaintiff demands judgment:

(a) That this Court grant final judgment against defendants, jointly and severally, as and for plaintiff Ebrima Maria in an amount that exceed the jurisdiction of all lower courts for compensatory damages and for punitive damages.

(b) That this Court grant final judgment in favor of plaintiff for all costs and disbursements of this action together with reasonable attorney's fees pursuant to by 42 USCA § 1988.

(c) That this Court grant such other and further relief as the Court deems just and proper.

Dated: Bronx, NY
May 19, 2021

INDIVIDUAL VERIFICATION

STATE OF NEW YORK

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) SS:

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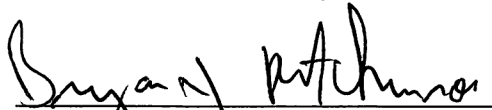
COUNTY OF BRONX

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EBRIMA MARIA, being duly sworn, deposes and says, that deponent is the **PLAINTIFF** in the within action; that deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


EBRIMA MARIA**Plaintiff**

Sworn to before me May 19, 2021


Bryan J. Hutchinson**Notary Public****Notary Public State of New York****Reg. No. 02HU6047247****Qualified in Bronx County****Commission Expires Aug. 28, 2022**

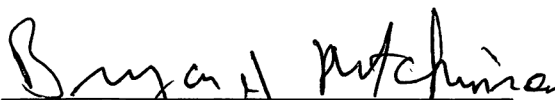
ATTORNEY CERTIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX)

The undersigned attorney does hereby certify:

I am an attorney duly admitted to practice law before the Courts of the State of New York and I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1(c) with regard to the following documents served, filed and submitted herewith in this Complaint.

Dated: Bronx, New York
May 19, 2021



Bryan J. Hutchinson, Esq.
Law Office of Bryan J. Hutchinson, PLLC
Attorney for ~~Plaintiff~~
1443 E. Gun Hill Rd, Suite 2
Bronx, New York 10469
Tel: (718) 671-0900

**STATE OF NEW YORK
SUPREME COURT: COUNTY OF BRONX**

-----X INDEX NO.

EBRIMA MARIA,

Plaintiff,

vs.

CITY OF NEW YORK, DET. ALLEN,
PO SAMANTHA GILL, PO JOHN DOE I
and JOHN DOE II, in their individual and
official capacities.

Defendants.

-----X

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SUMMONS AND COMPLAINT

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To Defendants:

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